Data/Information Sharing Agreement - ICPC/Alternative Pathways Evaluation

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1. Introduction to the Data Sharing Agreement

This Data Sharing Agreement [DSA] documents how the parties to this agreement, will share what data about whom with whom and why . The key agencies are listed in Appendix A, and the agreement is to be signed by all relevant parties, including local partners, voluntary sector, and any specialist organisations.

By signing this Agreement, the named agencies agree to accept the conditions set out in this document, according to their statutory and professional responsibilities, and agree to adhere to the procedures described.

This Agreement has been developed to:

- Define the specific purposes for which the signatory agencies have agreed to share information.
- Outline the Personal, Special Category and Criminal Data to be shared.
- Set out the lawful basis condition under UK GDPR and Data Protection Act 2018 through which the information is shared, including reference to the Human Rights Act 1998 and the Common Law Duty of Confidentiality.
- Stipulate the roles and procedure that will support the processing/sharing of information between agencies.
- Describe how the rights of the data subject(s) will be protected as stipulated under the data protection legislation.
- Describe the security procedures necessary to ensure that compliance with responsibilities under data protection legislation and agency-specific security requirements.
- Describe how this arrangement will be monitored and reviewed.
- To illustrate the flow of information from referral through processing and outcome.

Parties to this agreement cannot amend or add appendices unless agreed as part of a formal review. It is expected that each party will have procedures, processes and policies sitting underneath this agreement, for their respective organisations. These will, for example, describe the specific processes for secure transfer of data.

1.1. Ownership of this agreement

This agreement was drafted by The University of Exeter, Hammersmith & Fulham Council and Camden Council.

1.2. Responsibilities of parties involved

The parties are registered Data Controllers under the Data Protection Act. Signatories are identified as those who have signed this agreement on the platform on which this agreement is hosted (expected to be the Information Sharing Gateway). A list of expected types of signatories is at Appendix A.

All parties confirm that they comply with data protection legislation by:

- having a lawful basis for processing and sharing personal data.
- ensuring data quality.
- storing and sharing information securely, with access management controls.

- having policies and procedures for compliance with data protection legislation including for managing data subject rights & complaints, identifying and managing data breaches/incidents and retention & disposal.
- ensuring that mandatory training is undertaken regularly by their employees to ensure they are clear and up to date on their responsibilities. Every individual must uphold the principles of this agreement and overarching confidentiality, and seek advice from the relevant Data Protection Officer when necessary.
- undertaking appropriate data protection due diligence checks with any contractors/data processors they employ, and ensuring that a written agreement is in place with each data processor, and that all data processors will be bound by this agreement.
- having written processes for the processing of data to ensure employees use and share personal data in line with data protection law, the data protection principles, and this agreement.

Organisations and their staff must consult the organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian if they are unsure at any point in the processing and sharing of personal data.

1.3. Confidentiality and vetting

Each Partner must ensure that there are appropriate written contracts or agreements with employees, agency staff, volunteers etc. These must include requirements to ensure compliance with policies which include confidentiality.

Each Partner must ensure that suitable vetting has taken place. This may be through standard employee checks (BPSS or equivalent), DBS, Security Vetting or Counter Terrorist Check [CTC].

1.4. Assessment and review

A review of this information sharing agreement will take place every two years, unless otherwise agreed by the organisations' Data Protection Officers. The aim of the review will be to ensure the purposes are still relevant, the scope has not slipped, the benefits to the data subjects and organisations are being realised, and the procedures followed for information security are effective.

Changes in legislation and developments in the areas of public sector data sharing will be considered as and when they arise, as will any changes to the signatory parties.

The working group who drafted this agreement strongly recommend that a working group approach is used for any reviews, as this was a successful way to achieve pan-London and cross-specialism consensus to one sharing agreement.

1.5. Termination of agreement

In the event of termination of this agreement each party may continue to hold information originating from other parties for which they are data controller.

2. Purpose and Benefits

2.1. Purpose and benefits

This agreement covers the sharing of information by Hammersmith & Fulham Council and Camden Council with the University of Exeter for the purpose of:

- Contacting family members and professionals involved in the Family Group Conference to seek their consent to participate in a study
- To be able to understand the perspective and experiences of families and professionals engaged in the process
- To receive input from families and professions on how the meetings could be improved
- To measure the effectiveness the Family Group Conference process
- To determine how the Family Group Conference improves families' experiences with child protection work

The benefits of this DSA are to:

- Cover the sharing of information for the purposes above.
- Remove barriers to effective information sharing.
- Sets parameters for sharing personal data and clearly identifies the responsibilities of organisations.
- Identify the correct lawful basis to share personal information.
- Ensure information is shared whenever there is a requirement to do so.
- Enables authorities to share data on performance, quality assurance, learning and impact analysis.
- Raises awareness amongst all agencies of the key issues relating to information sharing and gives confidence in the process of sharing information with others.
- Greater efficiencies in processes and resources.

2.2. Principles of information sharing

To share information, a lawful basis for doing so must be identified. This may come from legislation or from statutory guidance such as Working Together to Safeguard Children 2018 or the Children Act 2014, which places responsibilities on organisations outside of the Partnership such as sports clubs, private organisations, and the voluntary, community and faith sectors.

The sharing of personal data must comply with both the GDPR Principles and the Caldicott Principles, listed at Appendix B. Together, those principles lead to a series of questions and considerations to be answered before sharing takes place. These are listed as an Information Sharing Checklist in *Appendix C: Information Sharing Checklist.*

2.3. Lawful Basis

The sharing of information must comply with the law relating to confidentiality, data protection and human rights. Having a legitimate purpose for sharing information is an important part of meeting those legal requirements. This is a complex area and each Partner must take their own decisions and seek advice from their organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian.

Articles 6, 9 and 10 of the UK GDPR, and section 8 of the DPA 2018 set out the acceptable conditions for the processing and sharing of personal, special category, and criminal data. The conditions relevant in the UK GDPR to data processed under this agreement are below.

Processing to evaluate families' experience with Conferences.

Processing to participate in the research.

Article 6 (1) – Personal Data Processing (Public Task)
(e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller

Article 9 (2) – Processing Special Category Data (Archiving and Research)
(j) processing is necessary for **archiving purposes** in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1) based on Union or Member State law which shall be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject. The ICPC/Alternative Pathways Evaluation gathers personal data, pseudonymises it and then anonymises the data after analysis for research purposes to help in understanding families' and professionals' journeys with the Safeguarding Family Conference. The anonymised data outputs will be valuable for improving families' experience with child protection work and determining the effectiveness the Family Group Conference process.

2.4. Proportionality and necessity

Proportionality and necessity are factors to be taken into consideration when deciding whether to share personal information. In making the decision, employees must weigh up what might happen as a result of the information being shared against what might happen if it is not, and apply their professional judgement. It is for this reason professionals must ensure they comply with Article 6.1 (e) and Article 9.2 (a), sharing the adequate and relevant information, limiting that information to what is necessary for achieving the Data Sharing Agreement aims. The data to be shared meets these requirements.

2.5. Freedom of Information

The Freedom of Information Act 2000 gives all individuals the right to access official information held by a public authority (the Environmental Information Regulations 2004 also allow access to data. For ease of drafting, FOI is used to cover both legislation). Limited exemptions may apply and all public authorities must ensure they have recognised procedures in place for administering requests of this nature.

All requests for FOI will be directed through the relevant organisations' FOI processes. Each party will seek advice/opinion from the other parties where there is concern about that information being released and any impact it is likely to have. The final decision to disclose or not will lie with the party who holds the information (data controller).

It is encouraged that all parties proactively publish this document. It may also be disclosed to the public under FOI.

3. Individuals

Organisations processing personal data are required to begin with the ethos of Data Protection by Design and Default (also known as Privacy by Design (PbD)). This means that we must consider and uphold the privacy of an individual's data before we begin and throughout the processing taking place.

Each party agrees that they have undertaken a DPIA (Data Protection Impact Assessment), where they feel the processing meets the legislative criteria for a DPIA.

3.1. Right to be informed – Privacy notices

Where personal data is created or received by one of the parties, they are responsible, as required by law, for making the data subject(s) aware within a reasonable time frame that the organisation holds the data, what they will do with it, how long they will keep it, and who they will share it with (such as under this DSA). This is normally done through a privacy notice, whether written or verbal. Organisations agree that they will adhere to the transparency requirements of the UKGDPR and will issue appropriate notices which inform the data subject that the information will be shared with the parties under this agreement.

In this case, individuals will also be informed through an Information Sheet. This Information Sheet will make the data subject(s) aware, before consenting to participating in the study, what data the organisations hold, what they will do with it, how long they will keep it, and who they will share it with.

3.2. Data subject rights requests and complaints

Each organisation must have in place appropriate policies and processes to handle data subject requests made in line with data protection law, to ensure they are responded to within deadline and in an appropriate manner. Requests include; right of access, right to rectification, right to erasure, right to restrict processing, right to data portability, right to object and rights related to automated decision making including profiling.

If an individual successfully requests the erasure or limitation of use of their data (right to erasure, right to rectification, right to restrict processing, right to object), the party that has been informed by the data subject will communicate this to the other parties where relevant and appropriate. In each case each party is responsible for securely disposing of such information or limiting its processing.

Each party must have clear, fair and objective complaint procedures. Any complaints from individuals how their data is being processed or shared will be handled under the policy and processes of organisation concerned.

3.3. Data subjects

There is a breadth of data subjects whose data is shared under this agreement. The data subjects include the following:

- young person
- family members, carers, and other persons whose presence and/or relationship with the young person, is relevant to them being involved in the Family Group Conferences
- professional opinions of employees involved in the Family Group Conferences eg social workers

Many of the data subjects are vulnerable. Parties to this agreement are in positions of power over data subjects and data subjects have little or no control over why and how their data is processed.

4. Data

4.1. The data to be shared

Data that will be shared by Hammersmith & Fulham and Camden Council with the University of Exter is:

- The contact details of the five families (20 C&YP) who consent to participate in the study. (First name, Surname, phone, email, address to post letters).
- For professionals (12 practitioners and 5 members of partner agencies), in addition to their contact details, their role within the local authority/partner agency will be documented.
- Data from cases files collected and held by their social care/FGC services on three outcomes for families diverted to a safeguarding FGC. These families will have consented to be part of the study, share their contact details and share the below data. The 3 outcomes are:

    Outcome 1: who was present in the 6-weekly safeguarding meetings following the FGC meeting [if this meeting takes place];

    Outcome 2: step up or step down of family case at 3 months and 6 months post-FGC;

    Outcome 3: any updates to the safeguarding plan during the safeguarding meetings.

- Data routinely collected by the Local Authority's social care/FGC services on three key child protection outcomes for two cohorts of families referred to the child protection pathway as described in the study protocol under the routine data collection 2 (social care/FGC service records) (ICPC/FGC pathway). The data will be anonymised prior to being shared with the researcher-in-residence and participant IDs will be used at source:

    Cohort 1: all families referred to the child protection pathway in period 12 – 6 months prior to implementation (from 01/04/2022 to 31/03/2023);

    Cohort 2: all families referred to the child protection pathway in the period 0 - 3 months post implementation (from 01/04/2023 to 31/12/2023).

    The three key CP outcomes at 6 months post ICPC/FGC for each cohorts are:

    CP outcome 1: referred families stepped up and stepped down;

    CP outcome 2: referred families with children in care, with family, other community care arrangements;

CP outcome 3: number and spread of family members and professionals attending meetings (FGC/ICPC and all follow-up 6 weekly meetings on CP pathway) [only if this is routinely collected by local authorities].

For reference, University of Exeter will collect the following information about individuals, families and practitioners from semi-structured interviews, meeting observations and reflection workshops:

- In observations (professionals/partners, young people and families), what different people in the meeting say and do. This isn't an assessment of the meeting or participation in it. No personal data or special category data will be captured. (this is not recorded)
- In interviews (professionals/partners, young people and families), what their experiences of the Safeguarding FGC are, including what is working well or less well, and how they think the meetings could be improved. No one will be asked about their personal circumstances and sharing special category information is discouraged. (this will be recorded, with consent)
- In workshops (professionals/partners, young people and families), what are their experiences of piloting the pathway.

The University of Exeter will not share the above information with the Local Authority unless a participant is in danger.

4.2. Storing and handling information securely

Information should only be stored and shared in accordance with data protection legislation and follow information security policies and procedures of the relevant organisation.

Information should always be shared securely, either by a secure IT connection, encrypted email, secure sharing platform, or secure and tracked transfer of paper documents. Information should never be sent via a non-secure method. Special category data may need a higher level of security. The employee/organisation sending the information must chose the most appropriate method of transfer and be responsible for its safe delivery.

The Local Authority will share data with Exeter University either using Egress or encrypted email with the password sent separately to a RiR's encrypted laptop. Researchers have completed the 3rd party assurance ISQ setting out how they will store information. Information will be stored on an encrypted system held by Exeter University as the host - the university's Research Data Storage (RDS) mapped network drive. Each RDS is unique to a given research project and can only be accessed by users given permissions from the central IT department.

RDS security utilises Azure Active Directory (AD) Single Sign-on (SSO). Remote access to RDS is achieved through a Virtual Private Network (VPN) upon which Multi-Factor Authentication (MFA) must be utilised. MFA will comprise of a staff member's username and password, followed by use of the Microsoft Authenticator application on their smartphone.

Information collected and processed by The University of Exeter:

Identifiable information (consent forms, participant attendance sheets etc.) will be kept on the university's secured SharePoint, separate from data, to ensure that data, after anonymisation, cannot be linked to any individuals. Hard copies of documents such as the consent forms and attendance sheets will be scanned, stored on the secure SharePoint, and disposed of in confidential waste bins.

The University of Exeter will be using an external transcriber who has contractual arrangements with the university. This is an approved supplier of the university's and accustomed to working within the boundaries of confidentiality agreements. Audio data will be transferred to the professional transcriber, and transcripts returned, by accessing a dedicated folder held on RDS. Transcriber's personal PC has McAfee LiveSafe virus protection, as well as Windows Security firewall and network protection. The transcriber will receive a personal University of Exeter IT account and will connect to RDS following the same processes as the research team (processes described above, including using MFA process). The transcriber will be experienced with working with confidential and sensitive data, and will be subject to a confidentiality agreement. The transcriber will destroy the audio records once the transcription is done.

4.3. Access controls and security

All parties will ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All personal data held by partner organisations electronically will be stored in a secure network area with password protected entry and appropriate back-up functionality. The systems will be auditable so that it is possible for any auditor to establish who has accessed the system. All laptops, computers, and any other portable devices will be encrypted.

Any individual no longer required to have access will promptly have such access revoked by the line manager and Human Resources related to the relevant employer.

There is an expectation that partner organisations will either be working toward ISO 27001, the International Standard for Information Security Management, or a similar standard of security.

4.4. Outside UK processing

Parties are responsible for ensuring that if information is processed or shared outside the UK, that suitable written agreements are in place, and that appropriate due diligence has been completed for the transfer of data.

4.5. Data quality

Each partner is responsible for ensuring the accuracy and relevance of the personal data that it processes and shares and must have clear processes in place for managing data quality.

Any party learning of the inaccuracy of personal data is responsible for informing the parties with whom that data has been shared.

4.6. Data breaches/incidents

All parties must have a clear policy and procedure regarding the reporting and handling of data protection breaches or data loss incidents. This must include assessing the level of risk to the data

subject(s), as well as to make a decision on notifying the ICO within the statutory time frame of 72 hours. This complies with Articles 33 and 34 of UKGDPR, and Section 67 and 68 of the DPA 2018 for personal data processed for law enforcement purposes.

If the incident may impact the processing of another party to this agreement, all relevant parties should be informed and appropriate co-ordination of the incident must take place. The decision to report the incident will lie with the data controller(s) of the information concerned. The parties agree to provide all reasonable and necessary assistance at their own expense to each other to facilitate the handling of any personal data breach in an expeditious and compliant manner.

It is confirmed that security breaches (including misuse or unauthorised disclosure) are covered by the partner's internal disciplinary procedures. If misuse is found there should be a mechanism to facilitate an investigation, including initiating criminal proceedings where necessary.

4.7. Retention & Disposal

Organisations are required by data protection legislation to document processing activities for personal data, such as what personal data is held, where it came from and with whom it has been shared. This Record of Processing Activity (ROPA) must include the retention period for the data.

Information must not be retained for longer than necessary for the purpose for which it was obtained. Disposal or deletion of personal data once it is no longer required, must be done securely with appropriate safeguards, in accordance with that organisation's disposal policies.

All data will be anonymised prior to retention. Anonymised data will be retained until 31 Mar 2034. All data will be deleted from the RDS in accordance with the University Policy. The 10 years period is determined by the University Retention Policy based on stated requirements of UK Research Councils and other significant sponsors.

5. Signatures

This agreement is signed on behalf of:

The University of Exeter

……

Name and Rank

…….

Date

……..

London Borough of Hammersmith & Fulham

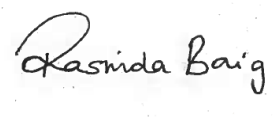
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Name and Position

…….

Date ……

London Borough of Camden



Name and Position

Rashida Baig- Director of Children's Prevention, Family Help and Safeguarding Supporting People

Date ……23.10.2023……

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6. Appendix A – Parties to this agreement

Organisation	Duties
London Borough Councils (Hammersmith & Fulham Council and Camden Council)	• Sharing contact details of participating families and professionals in the Family Safeguarding Conference
The University of Exeter	• Measure the effectiveness of the Family Group Conferences, determine areas for improvement and how it can improve families' experiences with child protection work

7. Appendix B: Data Protection & Caldicott Principles

The Principles as described in Article 5 of the General Data Protection Regulation.

1) Fair & Lawful
processed lawfully, fairly and in a transparent manner in relation to the data subject

2) Purpose limitation
collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes

3) Data minimisation
adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed

4) Accuracy
accurate and, where necessary, kept up to date; Inaccurate data must be erased or rectified without delay

5) Storage limitation
kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed

6) Integrity & Confidentiality
secured through appropriate technical or organisational measures, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage.

7) Accountability
processed by organisations that take responsibility for the personal data, with appropriate measures and records in place to demonstrate compliance.

The Caldicott Principles

Principle 1
Justify the purpose(s) for using confidential information
Every proposed use or transfer of confidential information should be clearly defined, scrutinised and documented, with continuing uses regularly reviewed by an appropriate guardian.

Principle 2
Use confidential information only when it is necessary
Confidential information should not be included unless it is necessary for the specified purpose(s) for which the information is used or accessed. The need to identify individuals should be considered at each stage of satisfying the purpose(s) and alternatives used where possible.

Principle 3
Use the minimum necessary confidential information
Where use of confidential information is considered to be necessary, each item of information must be justified so that only the minimum amount of confidential information is included as necessary for a given function.

Principle 4
Access to confidential information should be on a strict need -to-know basis
Only those who need access to confidential information should have access to it, and then only to the items that they need to see. This may mean introducing access controls or splitting information flows where one flow is used for several purposes.

Principle 5
Everyone with access to confidential information should be aware of their responsibilities
Action should be taken to ensure that all those handling confidential information understand their responsibilities and obligations to respect the confidentiality of patient and service users.

Principle 6
Comply with the law
Every use of confidential information must be lawful. All those handling confidential information are responsible for ensuring that their use of and access to that information complies with legal requirements set out in statute and under the common law.

Principle 7
The duty to share information for individual care is as important as the duty to protect patient confidentiality
Health and social care professionals should have the confidence to share confidential information in the best interests of patients and service users within the framework set out by these principles. They should be supported by the policies of their employers, regulators and professional bodies.

Principle 8
Inform patients and service users about how their confidential information is used
A range of steps should be taken to ensure no surprises for patients and service users, so they can have clear expectations about how and why their confidential information is used, and what choices they have about this. As a minimum, this should include providing accessible, relevant and appropriate information. In some cases, greater engagement will be required.

8. Appendix C: Information Sharing Checklist

The following questions must be considered when deciding whether to share information.

- Whose information is this?
- Is there a lawful basis to share the information? Justify the purpose and identify relevant legislation that applies.
- Can information be pseudonymised or anonymised ahead of sharing?
- How have individuals been informed that the information will be shared eg via a privacy notice? Will they have the expectation that their information will be shared? Consider whether notifying the individual of the sharing may place someone at risk or prejudice a police or safeguarding investigation.
- Have any requests not to share been received and considered?
- How much information is it necessary to share in this situation?
- Is the information accurate and up to date? Has the difference between fact and opinion been stated?
- Is access to the information limited to only those who need it? Is it being given to the right person?
- Is the information being shared in a secure way?
- Has the decision to share or not share, and the rationale for the decision, been recorded?